

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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HARVEY MCMANUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, P.O. MARK XYLAS, P.O. VAUGHAN
ETTIENNE and, P.O. RYAN GALVIN,

Defendants,
-----X

Index No.:

Date purchased:

Plaintiff designates

Kings

County as the place of Trial.

SUMMONS WITH NOTICE

The basis of the venue is
situs of occurrence:

Ralph Avenue and
Bainbridge Street
Brooklyn, NY 11213

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
January 26, 2017



Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; false arrest; unlawful detention; wrongful imprisonment, wrongful detention; malicious prosecution; violation of civil rights

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from April 1, 2015 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

HARVEY MCMANUS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, P.O. MARK XYLAS, P.O. VAUGHAN
ETTIENNE and, P.O. RYAN GALVIN,

Defendants,

-----X

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.

2. At all times hereinafter mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. The Police Department of the City of New York is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. That at all times herein mentioned defendant, Police Officer **MARK XYLAS** was a police officer employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a police officer.

5. That at all times herein mentioned defendant, Police Officer **VAUGHAN ETTIENNE** was a police officer employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a police officer.

6. That at all times herein mentioned defendant, Police Officer **RYAN GALVIN**

was a police officer employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a police officer.

7. That at all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

8. On September 1, 2016 plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this law suit.

9. On December 9, 2016 plaintiff's Notice of Claim as to the claim of malicious prosecution was deemed timely served nunc pro tunc.

10. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

11. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

12. That on April 1, 2015 at approximately 5:10 pm, P.O. MARK XYLAS, P.O. VAUGHAN ETTIENNE and, P.O. RYAN GALVIN, without reasonable or probable cause, falsely arrested plaintiff pursuant to an illegal search and seizure.

13. The incident as afore described resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

14. That P.O. MARK XYLAS, P.O. VAUGHAN ETTIENNE and, P.O. RYAN GALVIN provided false testimony at the Grand Jury Hearing which lead to the indictment of plaintiff.

15. That illegally obtained evidence lead to the indictment of plaintiff.

16. That a criminal proceeding was commenced against Harvey McManus.
17. That on April 27, 2015, in the Supreme Court of the State of New York, County of Kings, Criminal Term Part 21, Honorable John G. Ingram held a combined Dunaway, Mapp hearing.
18. That on May 18, 2016, Hon. Ingram issued a decision on the Dunaway, Mapp hearing, granting Harvey McManus' motion to suppress all illegally obtained evidence.
19. That Judge Ingram found that the search of plaintiff's car was unlawful.
20. That Judge Ingram found that the police officers lacked probable cause to search plaintiff's vehicle.
21. That Judge Ingram found that the Grand Jury Hearing testimony of P.O. Mark Xylas, P.O. Vaughan Ettienne, and P.O. Ryan Galvin was not credible.
22. That Judge Ingram found that the arresting officers' testimony that they had consent to search plaintiff's vehicle was not credible and not true.
23. That Judge Ingram found that the arresting officers' testimony that they smelled an odor of marijuana emanating from plaintiff's vehicle was not credible and not true.
24. That Judge Ingram found that the arresting officers' testimony that plaintiff's insurance card was expired was not credible and not true.
25. That Judge Ingram found that the arresting officers' testimony that they conducted an open warrant search prior to arresting plaintiff was not true.
26. That the criminal proceeding was terminated in favor of Harvey McManus.
27. That plaintiff was wrongfully imprisoned and unlawfully detained until he was released from police custody on June 23, 2016.

28. As a result of the foregoing, plaintiff sustained damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

29. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 28 hereof with the same force and effect as though fully set forth herein at length.

30. After falsely arresting plaintiff, police officers handcuffed plaintiff, restrained plaintiff and unlawfully detained plaintiff in police custody.

31. The unlawful detention of plaintiff caused plaintiff pain, humiliation, personal injury and suffering.

32. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD A CAUSE OF ACTION

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 28 and 29-32 hereof with the same force and effect as though fully set forth herein at length.

34. That after falsely arresting plaintiff, plaintiff was unlawfully imprisoned, constituting a false imprisonment of plaintiff.

35. That the false imprisonment of plaintiff caused said plaintiff personal injury, pain, humiliation and suffering.

36. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-28, 29-32 and 33-36 hereof with the same force and effect as though fully set forth herein at length.

38. Police officers Mark Xylas, Vaughan Ettienne, and Ryan Galvin knowingly and maliciously provided false testimony in order procure the indictment of Harvey McManus.

39. That the criminal proceeding was brought out of actual malice.

40. The actions of the above officers constituted a malicious prosecution.

41. The malicious prosecution of plaintiff continued until his release from custody on June 23, 2016.

42. As a result of the malicious prosecution, plaintiff sustained personal injuries and has been damaged in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
January 26, 2017

Yours, etc.,



Adam Hill, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35TH Floor
Brooklyn, New York 11241
(718) 855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am a partner in Ross and Hill, attorneys of record for plaintiffs in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiffs is that plaintiffs reside outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiffs, investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York
January 26, 2017



Adam Hill, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

HARVEY MCMANUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT,
P.O. MARK XYLAS, P.O. VAUGHAN ETTIENNE and, P.O. RYAN GALVIN,

Defendants,

SUMMONS & COMPLAINT

LAW OFFICES OF ROSS AND HILL, PLLC.

Attorneys for Plaintiff

Office and Post Office Address

16 Court Street, 35th Floor

Brooklyn, New York 11241

Tel (718) 855-2324

Fax (718) 855-4617

To:

Service of a copy of the within
is hereby admitted.

Dated:

Attorney(s) for